

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

GENERAL LIABILITY ENHANCEMENT ENDORSEMENT

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART

Schedule

1. Incidental Malpractice Liability	Included
2. Expected Or Intended Injury	Included
3. Non-Owned Watercraft	Up to 51 Feet in Length
4. Non-Owned Aircraft	Included
5. Property Damage Liability	
♦ By Use of Elevators	Included
♦ "Borrowed Personal Property" (Deductible: \$1000)	\$25,000
♦ Premises Rented to You or Temporarily Occupied by You With Permission of Owner	\$300,000
6. Medical Payments	\$10,000
7. Supplementary Payments - Increased Limits	
♦ Bail Bonds	\$1,000
♦ Loss of Earnings	\$500 a day
8. Broad Form Named Insured	Included
9. Newly Formed Or Acquired Organizations - Covered up to 180 days	Included
10. Additional Insured - Broad Form Vendors	Included
11. Knowledge of Occurrence	Included
12. Unintentional Failure To Disclose Hazards	Included
13. Definitions	

1. INCIDENTAL MALPRACTICE LIABILITY

- A.** The definition of "bodily injury" in Section **V – Definitions** is amended to include injury arising out of the rendering or failure to render medical or paramedical services to persons by any physician, dentist, nurse, emergency medical technician or paramedic who is employed by you to provide such services.
- B.** Paragraph **2.a.(1)(d)** under **WHO IS INSURED** (Section **II**) does not apply to nurses, emergency medical technicians or paramedics referred to in **a.** above.

This coverage does not apply if you are engaged in the business or occupation of providing any services referred to in paragraph **A.** above.

2. EXPECTED OR INTENDED INJURY

Exclusion **a.** under **COVERAGE A** (Section **I**) is replaced by the following:

- a.** "Bodily injury" or "property damage" expected or intended from the standpoint of the insured.

This exclusion does not apply to "bodily injury" or "property damage" resulting from the use of reasonable force to protect persons or property.

3. NON-OWNED WATERCRAFT

Paragraph **(2)** of Exclusion **g.** under **COVERAGE A** (Section **I**) is replaced by the following:

This exclusion does not apply to:

- (2)** A watercraft you do not own that is:
- (a)** Less than 51 feet long; and
 - (b)** Not being used to carry persons or property for a charge.

Paragraph **(2)** applies to any person, who with your expressed or implied consent, either uses or is responsible for the use of the watercraft;

4. NON-OWNED AIRCRAFT

The following paragraph is added to Exclusion **g.** under **COVERAGE A.** (Section **I**):

This exclusion does not apply to

- (6)** An aircraft that is:
- (a)** Hired, chartered or borrowed with a paid crew; and
 - (b)** Not owned by any insured.

However, paragraph **(6)** does not apply if other insurance is available to the insured for a loss we cover under paragraph **(6)**, whether primary, excess, contingent or any other basis.

5. PROPERTY DAMAGE LIABILITY

- A.** Exclusion **j.** under **COVERAGE A** (Section **I**) is revised as follows:

- 1.** The paragraph immediately following paragraph **(6)** is replaced by the following:

Paragraphs **(1)**, **(3)** and **(4)** of this exclusion do not apply to "property damage" (other than damage by fire, explosion, smoke or leakage from fire protection systems) to premises, including the contents of such premises, rented to you for a period of 7 or fewer consecutive days. A separate limit of insurance applies to Damage To Premises Rented To You as described in Section **III – Limits Of Insurance**.

- 2.** The following paragraphs are added to Exclusion **g.** under **COVERAGE A** (Section **I**):

Paragraphs **(3)** and **(4)** do not apply to the use of elevators.

Paragraph **(4)** of this exclusion does not apply to "property damage" to "borrowed personal property" while:

- (a)** The "borrowed personal property" is on premises occupied by you and owned, leased or rented by you; and
- (b)** "Property damage" insurance under this policy applies to the premises.

Subject to paragraph **2.** under **LIMITS OF INSURANCE** (Section **III**), the most we will pay for "property damage" to "borrowed personal property" is \$25,000 any one "occurrence". Our obligation to pay damages on your behalf applies only to the amount of damages in excess of \$1,000. The deductible amount applies to all damages because of "property damage" as the result of any one "occurrence" regardless of the number of persons or organizations who sustain damages because of that

"occurrence". We may pay any part or the entire deductible amount to effect settlement of any claim or "suit" and, upon notification of the action taken, you shall promptly reimburse us for such part of the deductible amount as has been paid by us.

The insurance provided for "property damage" from the use of elevators and for "property damage" to "borrowed personal property" is excess over any other valid and collectible property insurance (including any deductible portion thereof) available to any insured whether primary, excess, contingent or on any other basis.

B. The last paragraph under Exclusions (Section I – Coverage A) is replaced by the following:

Exclusions **c.** through **n.** do not apply to damage by fire, explosion, smoke or leakage from fire protection systems to premises while rented to you or temporarily occupied by you with permission of the owner. A separate limit of insurance applies to this coverage as described in paragraph **6.** under LIMITS OF INSURANCE (Section III).

C. Paragraph 6. under LIMITS OF INSURANCE (Section III) is replaced by the following:

- 6.** Subject to **5.** above, the Damage To Premises Rented To You Limit of \$300,000 is the most we will pay under COVERAGE **A** for damages because of "property damage" to any one premises, while rented to you, or in the case of damage by fire, explosion, smoke or leakage from fire protection systems, while rented to you or temporarily occupied by you with permission of the owner.

D. Paragraph 4.b.(1)(b) under COMMERCIAL GENERAL LIABILITY CONDITIONS (Section IV) is replaced by the following:

- (b)** That is Fire, Explosion, Smoke Or Leakage From Fire Protective Systems insurance for premises rented to you or temporarily occupied by you with permission of the owner;

6. MEDICAL PAYMENTS

A. Paragraph 1.a. under COVERAGE C – MEDICAL PAYMENTS (Section I) is replaced by the following:

1. Insuring Agreement

- a.** We will pay medical expenses as described below for "bodily injury" caused by an accident:

- (1)** On premises you own or rent;
- (2)** On ways next to premises you own or rent; or
- (3)** Because of your operations;

provided that:

- (1)** The accident takes place in the "coverage territory" and during the policy period;
- (2)** The expenses are incurred and reported to us within three years of the date of the accident; and
- (3)** The injured person submits to examination, at our expense, by physicians of our choice as often as we reasonably require.

B. Paragraph 7. under LIMITS OF INSURANCE (Section III) is replaced by the following:

- 7.** Subject to **5.** above, the Medical Expense Limit of \$10,000 is the most we will pay under Coverage **C** for all medical expenses because of "bodily injury" sustained by any one person.

7. SUPPLEMENTARY PAYMENTS

Paragraph **1.** under SUPPLEMENTARY PAYMENTS – COVERAGES A AND B (Section I) is revised as follows:

We will pay, with respect to any claim we investigate or settle, or any "suit" against an insured we defend:

- b.** Up to \$1,000 for cost of bail required because of accidents or traffic laws violations arising out of the use of any vehicle to which the Bodily Injury Liability Coverage applies. We do not have to furnish these bonds.

- d. All reasonable expenses incurred by the insured at our request to assist us in the investigation or defense of the claim or "suit", including actual loss of earnings up to \$500 a day because of time off from work.

8. BROAD FORM NAMED INSURED

The following is added to paragraph 2. under WHO IS INSURED (Section II):

Any subsidiary and subsidiary thereof which is a legally incorporated entity of which you own a financial interest of more than 50% of the voting stock on the effective date of the Coverage Part. The insurance afforded herein for any subsidiary not named in the Coverage Part as a named insured does not apply to injury or damage with respect to which an insured under this Coverage Part is also an insured under another policy or would be an insured under such policy but for its termination or the exhaustion of its limits of insurance.

9. NEWLY FORMED OR ACQUIRED ORGANIZATIONS

Paragraph 3.a. under WHO IS INSURED (Section II) is replaced by the following:

- a. Coverage under this provision is afforded only until the 180th day after you acquire or form the organization or the end of the policy period, whichever is earlier;

10. ADDITIONAL INSURED - BROAD FORM VENDORS

The following is added to WHO IS INSURED (Section II):

Any person or organization with whom you have agreed, because of a written contract or agreement to provide insurance, but only with respect to "bodily injury" or "property damage" arising out of "your products" which are distributed or sold in the regular course of the vendor's business, subject to the following additional exclusions:

a. Exclusions

The insurance afforded the vendor does not apply to:

(1) Contractual Liability

"Bodily injury" or "property damage" for which the vendor is obligated to pay damages by reason of the assumption

of liability in a contract or agreement. This exclusion does not apply to liability for damages that the vendor would have in the absence of the contract or agreement.

(2) Express Warranty

Any express warranty unauthorized by you.

(3) Physical or Chemical Change

Any physical or chemical change in the product made intentionally by the vendor.

(4) Repackaging

Repackaging, unless unpacked solely for the purpose of inspection, demonstration, testing or substitution of parts under instructions from the manufacturer, and then repackaged in the original container.

(5) Failure to Make Inspections, Adjustments, Tests or Servicing

Any failure to make such inspections, adjustments, tests or servicing as the vendor has agreed to make or normally undertakes to make in the usual course of business, in connection with the distribution or sale of the products.

(6) Demonstration, Installation, Servicing or Repair

Demonstration, installation, servicing or repair operations, except such operations performed at the vendor's premises in connection with the sale of the product.

(7) Labeling, Re-labeling or Other Use of Products After Distribution

Products which, after distribution or sale by you, have been labeled or re-labeled or used as a container, part or ingredient of any other thing or substance by or for the vendor.

- b. This insurance does not apply to any insured person or organization, from whom you have acquired such products, or any ingredient, part or container, entering into, accompanying or containing such products.
- c. This insurance does not apply if "bodily injury" or "property damage" included within the "products-completed operations hazard" is excluded either by the provisions of the Coverage Part or by endorsement.

11. KNOWLEDGE OF OCCURRENCE

The following is added to paragraph **2** under COMMERCIAL GENERAL LIABILITY CONDITIONS (Section **IV**):

Knowledge of an "occurrence", offense, claim or "suit" by any agent, servant or employee of any insured, or receipt by any agent, servant or employee of any insured of any demand, notice, summons or other legal paper in connection with a claim or "suit", shall not in itself constitute knowledge of any insured or receipt by any insured unless such "occurrence", offense, claim, or "suit" is known to or received by:

- (1) You, if you are an individual;
- (2) A partner, if you are a partnership;
- (3) A manager, if you are a limited liability company; or
- (4) An "executive officer" or insurance manager, if you are a corporation.

12. UNINTENTIONAL FAILURE TO DISCLOSE HAZARDS

Paragraph **6.** under COMMERCIAL GENERAL LIABILITY CONDITIONS (Section **IV**) is replaced by the following:

6. Representations

- a. By accepting this policy, you agree:
 - (1) The statements in the Declarations are accurate and complete;
 - (2) Those statements are based upon representations you made to us; and
 - (3) We have issued this policy in reliance upon your representations.
- b. We will not deny coverage under this Coverage Part because of your unintentional failure to disclose all existing hazards at the inception date of your policy.

13. DEFINITIONS

- A. The following definitions are revised under DEFINITIONS (Section **V**):

1. Bodily Injury

"Bodily injury" means bodily injury, sickness or disease sustained by a person, including mental anguish or death resulting from any of these at any time.

2. Insured Contract

"Insured contract" means:

- a. A contract for a lease of premises. However, that portion of the contract for a lease of premises that indemnifies any person or organization for damage by fire, explosion, smoke or leakage from fire protection systems to premises while rented to you or temporarily occupied by you with permission of the owner is not an "insured contract";
- b. A sidetrack agreement;
- c. Any easement or license agreement, except in connection with construction or demolition operations on or within 50 feet of a railroad;
- d. An obligation, as required by ordinance, to indemnify a municipality, except in connection with work for a municipality;
- e. An elevator maintenance agreement;
- f. That part of any other contract or agreement pertaining to your business (including an indemnification of a municipality in connection with work performed for a municipality) under which you assume the liability of another party to pay for "bodily injury" or "property damage" to a third person or organization.

Paragraph **f.** does not include that part of any contract or agreement:

- (1) That indemnifies a railroad for "bodily injury" or "property damage" arising out of construction or demolition operations, within 50 feet of any railroad property and affecting any railroad bridge or trestle, tracks, roadbeds, tunnel, underpass or crossing;
- (2) That indemnifies an architect, engineer or surveyor for injury or damage arising out of:
 - (a) Preparing, approving or failing to prepare or approve maps, shop drawings, opinions, reports, surveys, field orders, change orders or drawings and specifications; or
 - (b) Giving directions or instructions, or failing to give them, if that is the primary cause of the injury or damage; or
- (3) Under which the insured, if an architect, engineer or surveyor, assumes liability for an injury or

damage arising out of the insured's rendering or failure to render professional services, including those listed in (2) above and supervisory, inspection, architectural or engineering activities.

3. Mobile Equipment

Paragraph 12.f.(1)(a)(b)(c) does not apply to self-propelled vehicles of less than 1000 pounds gross vehicle weight.

4. Personal and Advertising Injury

The following is added to the "personal and advertising injury" definition:

"Personal and advertising injury" includes discrimination or humiliation that results in injury to the feelings or reputation of a natural person, but only if such discrimination or humiliation is:

- (1) Not done intentionally by or at the direction of;
 - a. Any insured; or
 - b. Any "executive officer," director, stockholder, partner or member of the insured; and
- (2) Not directly or indirectly related to the employment, prospective employment or termination of employment of any person or persons by any insured.

B. The following definition is added under DEFINITIONS (Section V):

Borrowed Personal Property

"Borrowed personal property" means personal property other than "auto" which you receive from another for temporary use in your business with the intent to return it or its equivalent.

"Borrowed personal property" does not include:

- a. Personal property owned by:
 - (1) You or your spouse if you are an individual;
 - (2) Your members, partners or their spouses if you are a partnership or joint venture;
 - (3) Your members or managers if you are a limited liability company;
 - (4) Your "executive officers" or directors if you are an organization other than a partnership, joint venture or limited liability company; or
- b. Personal property that is rented, leased or hired.